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Regulations for Allotment and Vacation of Residential Houses of the Assam Agricultural University

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Regulations for Allotment and Vacation of Residential Houses of the Assam Agricultural University

Rule

REGULATIONS-FOR-ALLOTMENT-AND-VACATION-OF-RESIDENTIAL-HOUSES-OF-THE-ASSAM-AGRICULTURAL-UNIVERSITY of 1990

Published on 30 June 1990

Commenced on 30 June 1990

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Regulations for Allotment and Vacation of Residential Houses of the Assam Agricultural University

Last Updated 10th February, 2020

In accordance with the provision containing in sub-section 43 of the Assam Agricultural University Act, 1968 (as amended up-to date), the following Regulations approved by the Board of Management in its meeting held on 30th June 1990 vide A.I. No. 9 are published in the official Gazette for general information of all concerned.

This supersedes the earlier Rules notified vide this office Memo No. AAU/BOM AT/79-80/1154-214, dated 26th April 1979.

This shall come into force with effect from 1st July 1990.

1.

Short Title and Application.

(a)

These Regulations shall be called the Regulations for Allotment and Vacation of Residential Houses of the Assam Agricultural University.

(b)

These Regulations shall come into force from the date of notification.

2.

Definitions.

(a)

Regulations, means Regulations for allotment and vacation of Residential Houses of the Assam Agricultural University.

(b)

'University' means the Assam Agricultural University.

(c)

'Directorate' means the Directorate of Physical Plant.

(d)

'Director' means the Director of Physical Plant or any other officer who is exercising the power of 'Director.

(e)

'Committee' means the House Allotment Committee for the purpose.

(f)

'House' means Residential Quarters of the Assam Agricultural University.

(g)

'The State Government' means the Government of Assam.

(h)

'Pay' means pay as defined in the Fundamental Rules and includes special pay, personal pay and such other emolument classified as 'pay'.

(i)

'Family' means wife or husband, as the case may be and legitimate children and parents residing with the employee.

(j)

'Standard rent' means the rent declared as such by the Directorate in accordance with any general or special orders of the University.

(k)

'Panel Rent' means the rent fixed by the University authority by a general or special order as measure of penalty for violation of any provision of the Rules.

(l)

'Unauthorised occupation' means in relation to any residential houses of the University in contravention of Regulation of the University.

3.

General.

(a)

The houses shall be under the control of the Directorate of Physical Plant which shall be responsible for their proper maintenance and for enforcement of rules.

(b)

The houses constructed by the Agencies/Departments others than the Directorate shall be handed over to the Directorate soon, after their completion for allotment under these rules.

4.

(a)

The houses shall be classified into the following categories on the basis of plinth areas.

Type A

150 Sqm. and above.

Type B

125 Sqm. and above.

Type C

100 Sqm. and above.

Type D

70 Sqm. and above.

Type E

50 Sqm. and above.

Type F

Below 50 Sqm.

(b)

These entitlement of different types of accommodation may be determined on the basis of the pay scale & status of the incumbent as to be notified by the authority from time to time.

5.

There shall be the following House Allotment Committees for purpose of the allotment of house

(a)

For main campus at Jorhat-

1.

Dean, Faculty of Agriculture, AAU.

-Chairman

2.

Other Deans/Assoc. Dean of the Faculties

-Member.

3.

Registrar of his nominee

-Member.

4.

Comptroller or his nominee

-Member.

5.

One teacher representative of each faculty to be nominated by the concerned Association

-Member.

6.

One representative of each of the recognised employees Association other than the teachers.

-Member.

7.

Executive Engineer to be nominated by the D.P.P.

-Member / Secretary.

(b)

For Khanapara Campus

1.

Dean, Faculty of Vety. Science

-Chairman

2.

One teacher representative of the Faculty of Vety. Science to be nominated by Association.

-Member

3.

One Representative from each of the recognised Employees

Association.

-Member

4.

Dy. Registrar, Khanapara

-Member

5.

Dy. Comptroller

-Member

6.

Executive Engineer to be nominated by D.P.P.

-Member/Secretary

(c)

Outlying Research & Training Centres/Colleges

1.

(a) Assoc. Dean/OSD of the College.

-Chairman nominated by the V.C.

(b) Chief Scientist/Station in-charge/Chief Training
Organiser/Principal

-Do.

2.

One representative of the concerned Directorate of
Research/Directorate of Extn. Education.

-Member.

3.

One representative from 'Teachers' of the Station.

-Member.

4.

One representative from employee station other than Teachers
of the Station.

-Member.

5.

One representative from D.P.P. to be nominated by D.P.P.

-Do

The Chairman will nominate a Secretary of the House Allotment Committee from amongst the members during his term.

6.

Application for allotment.

- An employee shall have to apply to the Secretary of the concerned Committee for allotment of a house in the prescribed form.

Application will be received quarterly on or before 15th of January, April, July and October each year. All applications received will be considered in the meeting of the Committee convened for the purpose and formal allotment will be notified within a week (application once applied for the allotment will be valid for one year only).

7.

Eligibility and criteria for allotment.

(a)

An employee shall be eligible for a type of house when one reaches that particular stage in the time scale of pay and envisaged in clause 4(b) above provided that when the duties of an employee are such that his presence in the interest of the University is essential, for the purpose of allotment of residential quarters to be declared by the University Administration, he may be allotted a house on the basis of priority.

(b)

Subject to (a) above, the allotment of house shall be made on the following considerations.

(i)

Seniority of the employees in terms of date of eligibility of a particular type of house.

(ii)

Relative necessity of the University to have such employees residing in the University Campus as decided by the House Allotment Committee concerned.

(iii)

The allotment of house to an employee be made subject to furnishing an undertaking in the manner prescribed vide (Annexure-I).

(iv)

The Vice-Chancellor may take out the residential quarters from the pool for making allotment in order to take case of special situation and in the interest of the University.

8.

Ineligibility.

(a)

No employee shall be allotted a houses if the wife or husband as the case may be of the employee has already been allotted a residence by the University.

(b)

When two employees in occupation of separate house marry each other, the senior most in the rank it respect of the University service will be eligible to occupy the house and the other shall surrender the same within one month of their marriage.

9.

Occupation.

(a)

An employee who is allotted a house shall intimate his acceptance to the H.A.C. concerned within a period of 7 (seven) days from the date of receipt of the order and should occupy the same within a period of 15(fifteen) days. The rent shall, however, be payable from his pay after expiry of seven days of the receipt of allotment order. In case, any employee fails to intimate and/or occupy the house within the time limit without any valid ground his allotment order shall be cancelled.

(b)

A competent authority may allow retention of a house by the employee/family on following grounds subject to payment of usual rent for the period of times specified below :

(i)

Resignation, dismissal, removal or termination of service 1 month.

(ii)

Transfer other stations or on foreign service/retirement/death of an employee while in service three months.

(iii)

Study leavey/deputation for higher training-full period provided that the family of the person on leave actually resides in his house.

(iv)

All kinds of leave with pay other than study leave-full period of leave. Employees who are granted leave without pay also be allowed to retain the quarters for the period of leave on payment of usual rent.

(c)

The persons vacating the house shall have to give at least 10 (ten) days notice to the Director for taking over the house.

(d)

The inventory of fitting and fixtures on a form prescribed is to be signed by the occupants of the house while he occupies or vacates the house.

(e)

In case an employee fails to occupy the house allotted to him within the time specified without reasonable ground, he shall be debarred for fresh allotment of house for one year.

(f)

If an employee occupies a house in an unauthorised manner he shall be evicted in the manner prescribed vide clause 18 below. During un-authorised occupation full panel rent under the rules be charged.

(g)

No occupant shall keep any cattle, buffaloes, goats, poultry, birds etc. in the campus.

10.

Rent.

(a)

Unless otherwise exempted by the authority an employee who has been allotted a house has to pay the rent as decided by the Authority. The rent shall be deducted from the monthly pay bills. In case of joint occupation the rent shall be realised proportionately.

(b)

The payment of service charges of electricity, water supply etc. shall be the responsibility of the occupants. Persons vacating the house shall pay the charges of the ASEB authorities before they leave and shall not pass the same to the successors.

11.

Sub-letting.

(a)

No employee shall sublet the whole or part of house allotted to him to any other person.

(b)

Violation of the clause II (a) and II (b) by an employee shall be tantamount to forfeiture of his allotment to the house and he shall have to vacate the quarter within one month notice.

12.

Maintenance of House compound.

(a)

The employee to whom a house is allotted will keep the premises neat and tidy in a clean condition. He shall also be responsible for fitting and fixtures etc. provided in the house. Such an employee shall not maintain any cattle etc. as mentioned under Clause 9(g) and has to obey the instructions issued by the authority from time to time.

(b)

After the allotment of the house, it shall be the responsibility of the occupants to get electricity or other services connections and the registration be made in the personal name.

13.

Breach of rules.

- If an employee to whom a house has been allotted makes any breach of the foregoing rules or the terms and conditions of allotment or uses the premises for any other purposes other than for his accommodation, the University Administration without prejudices to any other disciplinary action may cancel the allotment forthwith and he will be debarred from allotment of a quarters for 3 years.

14.

Interpretation.

- If any question arises as to the interpretation of rules the decisions of the Committee shall be final.

15.

Exception.

(a)

In case of hardship of an individual employee, Vice-Chancellor for reasons to be recorded in writing may relax any of the provisions of the rules.

(b)

These rules are not applicable to those who are to be provided accommodation by virtue of service conditions.

16.

Panel Rent.

- An employee who fails to vacate the house within the time stipulated, shall have to pay a panel rent which should be two times the standard rent or 20% of the pay (whichever is less) for the next three months.

17.

Steps to affect Vacation.

(a)

If the house is not vacated within a period of three months as mentioned in clause 16 above, the Director of Physical Plant shall serve notice on the person for immediate vacation of the quarter. The Directorate of Physical Plant would be responsible to process such action and the University Administration will take steps for realisation of panel rent mentioned above. This provision of rule would be applicable in case of retired and transferred employees of the University like State Government/Central Government etc., and whose deputation period is over as per terms of deputation.

(b)

A pensioner of A.A.U. shall not be eligible to get pensionary benefit such as gratuity, leave encashment benefit, and the University share of payment of C.P.F. till certificate from the Directorate of Physical Plant is received that the house allotted to the employee has been vacated as per provisions of the Rule to the satisfaction of the Directorate.

(c)

Any violation of the above Rules by the employees shall be recorded in his/her Service Book and this aspect shall be taken into consideration at the time of future promotion/selection to the higher posts.

18.

In case of failure to vacate the quarter within the stipulated period by the retired/transferred, deputed employee and the persons as mentioned in clause 9(b) and even after serving adequate notices by the Director of Physical Plant, the D.P.P., will submit formal proposal to the Registrar, A.A.U., with a detail note to initiate legal action to get the quarter vacated as per law. The Registrar after being satisfied with the actions taken at the level of Directorate will proceed to file evictions suit before the competent court in consultation with the legal Adviser to get the quarter vacated.

19.

The Board of Management shall have the authority to make amendment, deletion, addition etc., of any clause of the Regulations as and when consideration necessary.

Annexure-A

Form of Undertaking to be given for occupation of House.

I, Shri/Dr.....S/O or W/O Shri/Dr.....at.....do hereby declare that I have gone through the Regulations for allotment and vacation of residential houses of the A.A.U. and solemnly affirm that I shall abide by the said Regulation and various provisions contained in it.

In case of my failure to comply with any provisions of the said Regulation. I shall be liable to penal/legal action as provided in the said Regulation of House Allotment and vacation of the Assam Agricultural University.

This undertaking is signed by me to-day the.....of 199 in presence of Shri/Dr. Controlling Officer/Head of the Deptt. of.....

Signature of Controlling Officer/Head of the Deptt.

Signature of applicant

Place.....

Office of the Registrar : Assam Agricultural University : Jorhat

Notifications

The 10th April, 1990

No. AAU/R-147 (BOM)/89-90. - In accordance with the provision contained in Section 42(5) of the Assam Agricultural University Act, 1968 (as amended up-to-date) the following revised delegation of Administrative & Financial Powers-1988 approved by the Board of Management in its meeting held on 3rd November 1988 vide A.I.No.2(7) and consented by the Chancellor on 16th February 1990, are published in the official Gazette for general information.

This will come into force with immediate effect.

This supercedes the existing delegation of Administrative and financial powers, 1983 given to the different officers of the University earlier.

Related AI tags, queries and research notes

Translation